

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 14-06

**SANTA FE DISCOUNT CRUISE PARKING, INC. d/b/a EZ
CRUISE PARKING; LIGHTHOUSE PARKING, INC.; and
SYLVIA ROBLEDLO d/b/a 81st DOLPHIN PARKING**

Complainants

v.

**THE BOARD OF TRUSTEES OF THE GALVESTON
WHARVES and THE GALVESTON PORT FACILITIES
CORPORATION**

Respondents

**COMPLAINANTS' REPLY TO RESPONDENT THE BOARD OF TRUSTEES OF THE
GALVESTON WHARVES' AND THE GALVESTON PORT FACILITIES
CORPORATION'S VERIFIED PETITION FOR RECONSIDERATION AND MOTION
FOR STAY OF PROCEEDINGS**

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INTRODUCTION

Santa Fe Discount Cruise Parking, Inc. d/b/a EZ Cruise Parking (“EZ Cruise”); Lighthouse Parking, Inc. (“Lighthouse”); and Sylvia Robledo d/b/a 81st Dolphin Parking (“Dolphin”) (collectively “Complainants”), hereby reply to Respondents The Board of Trustees of the Galveston Wharves (the “Board”) and the Galveston Port Facilities Corporation’s (“GPFC”) (collectively “Respondents”) Petition for Reconsideration and Motion for Stay of Proceedings filed May 17, 2021 (the “Petition”). Complainants object to Respondents’ Petition on both procedural and substantive grounds.

I. PROCEDURAL OBJECTIONS TO PETITION FOR RECONSIDERATION

Respondents’ Petition is governed by Rule 261 of the Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.261. The Rule states:

(a) Within thirty (30) days after issuance of a ***final decision or order by the Commission***, any party may file a petition for reconsideration. Such petition shall be limited to 25 pages in length and shall be served in conformity with the requirements of subpart H of this part. **A petition will be subject to summary rejection unless it:**

(1) Specifies that there has been a ***change in material fact or in applicable law***, which change has occurred ***after issuance of the decision or order***;

(2) Identifies a ***substantive error in material fact*** contained in the decision or order; or

(3) Addresses a ***finding, conclusion or other matter upon which the party has not previously had the opportunity to comment*** or which was not addressed in the briefs or arguments of any party. ***Petitions which merely elaborate upon or repeat arguments made prior to the decision or order will not be received.*** A petition shall be verified if verification of the original pleading is required and shall not operate as a stay of any rule or order of the Commission.

46 C.F.R. § 502.261 (emphasis added).

At the outset, Respondents have not met the requirements of Rule 261(a) for filing the Petition because the Commission’s Order on Initial Decision on Remand (“OIDR”) was not final.

Importantly, in reversing the Initial Decision on Remand in part, and finding that Respondent the Board violated 46 U.S.C. § 41106(2) with respect to Complainants, the Commission remanded this matter for further proceedings on reparations for the §41106(2) violations. (OIDR at 40).

The Supreme Court has held that: “[T]wo conditions must be satisfied for agency action to be ‘final’: First, the action must mark the ‘consummation’ of the agency’s decisionmaking process And second, the action must be one by which ‘rights or obligations have been determined,’ or from which ‘legal consequences will flow.” *Carolina Marine Handling, Inc. v. South Carolina State Ports Authority, et al.*, 2006 WL 3473384, at *3 (FMC 2006) (citing *Bennett v. Spear*, 520 U.S. 154, 177-78 (1997) (citations omitted)). As applied to Respondent the Board, the OIDR does not meet the first requirement (as applied to Respondent GPFC, the OIDR fails on both counts¹).

Importantly, the OIDR fails to mark the “consummation” of the Commission’s decision-making process as to the Board. When a case is remanded to an ALJ so that discovery can proceed, it does not “mark the ‘consummation’ of the agency’s decisionmaking process.” *Bennett*, 520 U.S. at 178. The U.S. Court of Appeals for the District of Columbia Circuit has held that decisions by the Department of Labor Benefits Review Board that “remand cases to an ALJ for a determination of damages are not final orders.” *Washington Metro. Area Transit Auth. v. Dir., Office of Worker's Comp. Programs*, 824 F.2d 94, 96 (D.C. Cir. 1987). Similarly, the Fifth Circuit has held that “[a]gency orders which remand to an administrative law judge for further proceedings **are not final orders**” *Am. Airlines, Inc. v. Herman*, 176 F.3d 283, 289 (5th Cir. 1999) (emphasis added). Here, the OIDR merely remanded this case to the Administrative Law Judge to consider an appropriate reparations award for Complainants EZ Cruise and Dolphin for the period from June 16, 2011 to July 31, 2014’s for Respondent the Board’s 46 U.S.C. § 41106(2) violations.

¹ See analysis as to GPFC in Section X., commencing on page 20 of this reply brief.

(OIDR at 39-40). Accordingly, the OIDR was a preliminary decision with respect to Complainants and the Board because the decision-making process of the agency has not ended and, therefore, the OIDR does not constitute a “final decision or order by the Commission” necessary for Respondent the Board to petition for reconsideration under Rule 261.

II. THE CLAIMS CONSIDERED BY THE COMMISSION HAVE BEEN THOROUGHLY PLEADED, BRIEFED AND ARGUED

In petitioning for reconsideration, Respondent contends that the Commission erred in ruling on Complainants’ claims arising from the selective enforcement of the Tariff because such claims “were never properly plead.” (Petition at 2). Respondent’s argument fails twice. First, Complainants’ First Amended Verified Complaint (the “Amended Complaint”) properly pleads the at-issue claims; and second, Respondent has long-since waived this argument.

As an initial point, Respondent only now, seven years into this matter, alleges that Complainants failed to properly raise the issue of Respondent’s selective enforcement of the Tariff. (Petition at 2). Though Complainants will show below that Respondent’s assertion is incorrect, the merits of such showing should not even be reached, as Respondent has waived this objection and the issue was tried by consent of the parties.² Complainants filed their Amended Complaint in full compliance with 46 C.F.R. § 502.62, sufficiently informing Respondent of the alleged violations of the Shipping Act of 1984 (the “Shipping Act”). Following that filing, and without a

² Even assuming, *arguendo*, that the claims relating to Respondent’s disparate and preferential treatment and selective enforcement with respect to limousines were not pled with sufficient particularity, which is denied, Complainants would show the issues were raised in Complainants’ briefing at every stage of this proceeding and, therefore, tried by consent of the parties pursuant to FED. R. CIV. P. 15(b) (“Rule 15(b)”). Rule 15(b) provides in language that could not be clearer that “when issues not raised by the pleadings are tried by express or implied consent of the parties, they shall be treated in all respects as if they had been raised in the pleadings.” See *Torry v. Northrop Grumman Corp.*, 399 F.3d 876, 878 (7th Cir. 2005). Further, even if Respondents had raised this argument in responding to Complainants’ briefing – which they did not – it still does not make this distinction lawful.

motion for more definite statement being filed, the parties—as will be shown and cited below—engaged in extensive briefing on the very topics Respondent now alleges were not properly pleaded. *See* 46 C.F.R. § 502.67.

For example, in the Amended Complaint, Complainants expressly plead for relief in the form of reparations for:

“...injuries and damages caused to them by the Respondents’ violations of the Shipping Act, 46 U.S.C. §§ 41102(c), 41106(2) and (3), including (a) subjecting Complainants to an undue or unreasonable prejudice or disadvantage; (b) granting an undue preference or advantage with respect to other users of its facilities; (c) failing to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with the receiving, handling, storing or delivering of property, and (d) unreasonably refusing to deal or negotiation with Complainants regarding modification of the unreasonable rates and charges.”

(Amended Complaint at 2).

“The actions of the Respondents’ constitute violations of the Shipping Act of 1984, including: unjust, unreasonable and unlawful practices in violation of of [sic] 46 U.S.C. § 41102(c); giving unreasonable preference or advantage, and/or imposing undue or unreasonable prejudice or disadvantage with respect to persons in violation of 46 U.S.C. § 41106(2); and, unreasonably refusing to deal or negotiate with Complainants in violation of 46 U.S.C. § 41106(3), for which the Complainants have suffered and continue to suffer substantial damages.”

(*Id.* at 27). As identified in the OADR, the Commission found “that Respondent The Board of Trustees of the Galveston Wharves (Board) violated 46 U.S.C. § 41106(2) with respect to EZ Cruise and 81st Dolphin.” (OADR at 2). While Complainants pleaded multiple violations of the Shipping Act, the Commission found Respondent only in violation of 46 U.S.C. § 41106(2).

Attempting to side-step the OADR, Respondent argues that Complainants did not plead § 41106(2) violations specifically as to limousines in the Amended Complaint, and so the Commission’s findings of Respondent’s violations of the Shipping Act with respect to limousines were in error. (Petition at 2-4). In support of this argument, Respondent relies on the definitions provided for “Commercial Passenger Vehicle” and “Limousine” in the subject Tariff. (*Id.* at 2).

However, this appeal to semantics does no favor for Respondent, as Complainants expressly pled in their claim for relief that “Respondents have historically failed to charge and/or collect Access Fees from a material percentage – if not a majority – of **commercial vehicles** that have accessed the Cruise Terminal since the Tariff’s inception.” (Amended Complaint at 25 (emphasis added)). As recognized by Respondent, the working definition of “limousines” pursuant to the tariff is “a **motor vehicle** operated for **commercial** purposes ... that is used for the transportation of people.” (Petition at 5) (emphasis added). By definition, a limousine is a “commercial vehicle” as pleaded by Complainants.

This pleading of Respondent’s violation of the Shipping Act was also addressed in the OADR, recognizing that the Amended Complaint alleged “that the October 2014 Tariff did not resolve Respondents alleged failure historically to enforce the tariff against those other than Complainants.” (OADR at 11). Additionally, Respondent’s assertion that Complainants “claim of ‘selective enforcement’ was clearly limited to hotels” is clearly mistaken. As shown above, Complainants’ claim of Respondent’s selective enforcement of the Tariff is not “limited to hotels,” but applied generally to “commercial vehicles” accessing the Cruise Terminal against which Respondent selectively enforced the Tariff, and in multiple ways, violated the Shipping Act.

Moreover, Complainants’ claims pertaining to Respondent’s violations of the Shipping Act with respect to limousines were not only raised in the Amended Complaint, but have been expressly addressed, briefed, and argued in every subsequent filing by both Complainants and Respondents since the Amended Complaint. (See, e.g., Compl. Brief at 14-17, 22-23, 36-37, 42-45; Compl. Revised Brief at 7, 14, 16-17, 23-24, 37-38, 43, 45; Resp. Brief at 12-14, 21, 23, 26-27, 29-31, 45-46, 50, 54; Compl. Reply Brief at 7, 9-11, 16-18, 20, 22-23, 26, 30-32; Compl. Exc. to ID at 2-3, 5-6, 8, 10-13, 15-20, 22-25; Resp. Reply to Exc. to ID at 15, 17-19, 22-23, 32, 34, 37,

43; Brief of Petitioners at 12, 13, 18-20, 23, 25; Brief of Intervenor at 1-7; Complainants' Statement at ii, 3, 4, 7-9; Respondent's Statement at 1; Compl. Exc. to IDR at 2-7, 9, 10, 13-19, 22, 23, 27-29, 32, 35-40, 42; Resp. Reply to Compl. Exc. to IDR at 13-15, 17, 21-24, 26-28, 31, 32, 34-38, 40. In fact, Respondent itself has stated that the record is "full of argument and evidence" pertaining to the disparate treatment of Complainants versus limousines. (Resp. Reply Exc. to IDR at 35). In addition to the parties' extensive litigation of the issue, Complainants' claims of Shipping Act violations arising from selective enforcement of the Tariff and disparate and preferential treatment by Respondent relating to access to the Cruise Terminal by limousines has been considered and ruled on, to one degree or another, by the ALJ's Initial Decision (the "ID"), the Commission's Order Affirming Initial Decision's Dismissal of Complaint (the "OAID"), the United States Court of Appeals for the District of Columbia Circuit's (the "D.C. Circuit") decision in *Santa Fe Discount Cruise Parking, Inc. v. Fed. Mar. Comm'n*, 889 F.3d 795, 797 (D.C. Cir. 2018) (the "D.C. Circuit Judgment"); the Initial Decision on Remand (the "IDR"), and the Order on Initial Decision on Remand (the "OIDR"). (See, e.g., ID at 30-32, 35-36; OAID at 16, 18-20; IDR at 38, 44-46, 66; OIDR at 12-14, 17, 22-27, 32-36, 38-40).

Furthermore, in Complainants' appeal to the D.C. Circuit, the issue of Respondent's selective enforcement of the Tariff with regard to limousines was expressly identified and argued. (See, e.g., Brief of Petitioners at 12, 13, 18-20, 23, 25; Brief of Intervenor at 1-7). When the matter was ruled upon and remanded to the FMC for further proceedings consistent with Justice Kavanaugh's opinion, the Commission issued its Order Remanding Proceeding to Administrative Law Judge (the "ORPALJ"), remanding the matter to the ALJ to address all remaining issues. (See ORPALJ). Upon remand, the ALJ issued an Order to Identify Necessary Supplemental Briefing (the "OINSB"), requiring Complainants to, among other things, "serve and file a statement setting

forth what, if any, additional issues remain, and what, if any, supplemental briefing they believe is necessary before the undersigned addresses the remaining issues.” (OINSB at 2). That order likewise required Respondent to “file a response to Complainants’ statement” and, if Respondent opposed additional briefing, to “state why additional briefing is not necessary.” (*Id.* at 2). In compliance with the OINSB, Complainants served and filed their statement (“Complainants’ Statement”) identifying as a remaining issue, among others, (1) whether Respondent had shown legitimate transportation factors justifying the disparate treatment accorded limousines versus Complainants, and (2) whether Respondent had shown legitimate transportation factors justifying the disparate treatment arising from the selective enforcement of the Tariff. (Complainants’ Statement at 7-9). In Respondent’s Statement in response to Complainants’ Statement, Respondent did not object to or contradict the issues Complainants identified as remaining to be decided in this matter. (See Respondent’s Statement). Both Complainants and Respondent agreed and identified that no supplemental briefing was necessary on those issues. (Complainants’ Statement at 10; Respondent’s Statement at 1).

As shown above and made clear in the parties’ statements to the ALJ on remand, Respondent has long been aware of and actively litigating Complainants’ claim of Shipping Act violations arising from Respondent’s selective enforcement of the Tariff and disparate treatment as to limousines versus Complainants, and on September 23, 2018, Respondent filed a statement in this proceeding identifying the issue, and expressly stating that “no additional briefing is required.” (Respondent’s Statement). Accordingly, Complainants’ Amended Complaint properly plead the claims, and Respondent was given sufficient notice of the issues.

III. NO VALID TRANSPORTATION FACTOR FOR LIMOUSINES; RESPONDENT’S STATISTICS ARGUMENT IS IRRELEVANT

Respondent argues that its failure to enforce the Tariff as to limousines for years, while throughout that time consistently and without fail collecting fees pursuant to the Tariff against Complainants, was reasonable... or at least, irrelevant. This is not a defensible position. Respondent contends that because the fees it would have collected from limousines had it enforced the Tariff were smaller than the fees it did collect from Complainants, that the preferential treatment of limousines does not really matter. Essentially, Respondent appears to contend that, although it violated the Shipping Act, it didn’t violate it bad enough. However, the Commission identified that it is not the amount of money that Respondent would have collected had it not violated the Shipping Act which is at issue, but rather the nature and longevity of the violations that cannot be ignored. (OIDR at 30, 33).

While recognizing that “the Shipping Act applies to acts or omissions that occur on a normal, customary, and continuous basis,” Respondent alleges that the Commission “misinterprets Section 41106(2) to effectively permit finding a violation based on a single, very limited act or omission.” (Petition at 8). The sole logical assumption to be construed from Respondent’s argument is that Respondent does not consider its consistent, years-long, and habitual conduct to rise to the level of “normal, customary, and continuous” practices, but rather inexplicably, that it was “a single, very limited act or omission.” This is an untenable position, and Respondent cites to no authority interpreting ongoing Shipping Act violations of similar duration as being a “single, very limited act or omission.” (*Id.*).

Respondent contends that the Commission’s decision sets an “impossible” standard that requires marine operators to “use inordinate efforts to collect such fees, and must be successful in those efforts, regardless of (1) how small the amount involved, (2) the difficulty involved, or (3)

the costs involved in collecting such fees.” (Petition at 10). This is nothing more than a red herring. As the Commission made clear, the Shipping Act violations did not arise from Respondent’s *inability* to collect Access Fees from limousines, but from Respondent’s disparate treatment of Complainants versus limousines, and its systematic failure to charge limousines the Access Fees required by the Tariff over a period of many years; neither of which violations are justified by legitimate transportation factors. (See, e.g., OADR at 13-14, 30, 33).

Respondent also attempts to justify its violations by raising new arguments and allegations of transportation factors. In the D.C. Circuit Judgment, Justice Kavanaugh stated:

“To be sure, under the statute and the *Ceres* test, the Galveston Port may be able to show that the differential treatment of Petitioners’ shuttle buses is justified by legitimate transportation factors. But the Commission never reached that step of the analysis. On remand, the Commission may consider the Port’s argument to that effect.”

Santa Fe Disc. Cruise Parking, Inc. v. Fed. Mar. Comm’n, 889 F.3d 795, 797 (D.C. Cir. 2018). In conformity with that order, the ALJ provided Respondent with the opportunity to engage in additional briefing to address the missing transportation factors, but Respondent expressly waived that opportunity. (See Respondent’s Statement at 1). In the OADR, the Commission explained as follows:

“That limousines access the cruise terminal sporadically or are difficult to collect fees from *might* constitute legitimate transportation factors that *could* justify a port’s decision to treat limousines differently than other entities. But Respondents do not make that argument, and there is no evidence that these were the reasons why Respondents’ exempted limousines from access fees.”

“In sum, Respondents did not provide evidence that they exempted certain limousines from access fees based on legitimate transportation factors.”

(OADR at 26 (emphasis in original)).

After failing to raise such argument or evidence throughout this proceeding, and having expressly declined the opportunity to further brief the issue of transportation factors, Respondent

now seeks to simply adopt the arguments identified by the Commission in the OADR as to what factors “*might* constitute legitimate transportation factors that *could* justify” Respondent’s conduct. (*See id.*). Specifically, Respondent now affirmatively asserts that the “sporadic nature of limousine” access to the Cruise Terminal is a transportation factor which the Commission should consider, and that the small sum of Access Fees that were not charged to limousines led to an “operational difficulty” that constitutes a transportation factor excusing the unequal treatment at issue. (Petition at 8-9). However, even if the Commission were to take up these prior-waived and late-proposed arguments, neither holds up to scrutiny when considering the nature of the Shipping Act violations at issue. None of the new arguments and allegations of transportation factors contained in Respondent’s Petition for Reconsideration justify Respondent’s different treatment under the Tariff of some types of limousines versus other types, or as compared to Complainants.

Moreover, as identified by the Commission, Respondent has not—before its Petition for Reconsideration—made the above arguments, nor presented any evidence showing that these were the reasons behind Respondent’s conduct in violation of the Shipping Act. (OADR at 26). “Post-hoc rationalizations are insufficient.” (*Id.*). No legitimate transportation factor has been shown to exist which would validate Respondent’s conduct.

Finally, looking through Respondent’s attempt to now assert transportation factors into this proceeding, the gist of Respondent’s argument is that the Commission cannot impose penalties on a marine terminal operator for systematic violations of the Shipping Act which span many years when those violations arise from conduct that constitutes less than 2% of the marine terminal operator’s business. (*See* Petition at 8). In essence, Respondent is asking the Commission to officially declare it permissible for marine terminal operators to systematically violate the

Shipping Act in their dealings with a certain class of port user. Considering that Section 41106(2) of the Shipping act expressly prohibits the result Respondent seeks, it is unsurprising that no authority for doing so has been cited. See 46 U.S.C. 41106(2) (“A marine terminal operator may not ... give any undue or unreasonable preference or advantage or impose any undue or unreasonable prejudice or disadvantage with respect to any person...”).

IV. RESPONDENT’S HABITUAL SELECTIVE ENFORCEMENT OF THE TARIFF

In the OADR, the Commission addressed two issues of Respondent’s selective enforcement of the Tariff: (1) the fact that Respondent habitually charged commercial vehicles less than the Tariff required for access to the Cruise Terminal; and (2) the fact that Respondent allowed limousines access to the Cruise Terminal free of charge, in violation of the Tariff. (OADR at 27).

Addressing the first form of Respondent’s selective enforcement, the Commission identifies that Respondent charged limousines Access Fees less than those required by the Tariff from “no earlier than December 17, 2007,” and that such selective enforcement “appears to have ended on July 31, 2014.” (*Id.* at 29). As noted by the Commission, Respondent became aware of the fact that it was charging limousines Access Fees less than those required by the Tariff by at least May of 2014. (*Id.* at n.17 (citing Resp. App. at 2085 (Murchison Aff. ¶ 23))). Citing Respondent’s own briefing, the Commission then identifies that “the tariff-enforcement error was not resolved until August 2014.” (*Id.* at n.17 (citing Resp. Corr. Brief at 21 n.5)).

In its Petition, Respondent alleges that the Commission’s finding is “factually incorrect,” and in support of its position, cites to eleven companies who were billed Access Fees during the relevant time-period. (Petition at 11-12). However, a review of the evidence cited by Respondent undermines its allegation and further supports the Commission’s finding. Of the eleven companies

referenced, three are inapplicable as they pertain to access by busses, not limousines;³ and six clearly show that Respondent was still charging limousines less than the Tariff-required Access Fees through July of 2014. Specifically, the evidence cited to by Respondent shows that Abiding Limo, Action Limo, AIM Limo, Avanti Transport, Blackhorse Limo, and Merlo's Limo's were each charged only \$10.00 per trip Access Fees by Respondent for access occurring in July of 2014 in violation of the controlling Tariff. (*See id.* at 11-12; Compl. App. 001699 (BOT_017193), Compl. App. 001702 (BOT_017196), Compl. App. 001714 (BOT_017208), Compl. App. 001731 (BOT_017226), Compl. App. 001739 (BOT_017236), Compl. App. 001878 (BOT_017372); *see also* [Cite to Tariff Circular No. 6, 7th Rev.] Compl. App. 000466-000471).

Respondent's allegation that the Commission was factually incorrect and that Respondent was "not dilatory in correcting" its systematic violations of the Shipping Act appears to be the result of Respondent's conflation of two separate analysis performed by the Commission. (*See* Petition at 11-12). What Respondent seems to be addressing is the violations of the Shipping Act which arose from its admitted wholesale waiver of Access Fees to limousines in violation of the Tariff for nearly six (6) years beginning in September 2008, not the particular violation of the Shipping Act that the Commission was considering when making its statement, which was based upon Respondent charging less than the required Access Fees to port users. Addressing Respondents violation of the Shipping Act arising from its waiver of Access Fees to limousines, the Commission relies on Respondent's own briefing and evidence in the record showing that the

³ See Avanti Transport, Comp. App. 001731 (BOT_017224); Galveston Limo, Comp. App. 001831 (BOT_017336); Merlo's Limo's, Comp. App. 001878 (BOT_017372); *see also* Tariff Circular No. 6, 5th Rev., Comp. App. 000444 and Tariff Circular No. 6, 7th Rev., Comp. App. 000466.

selective enforcement was not corrected until August 2014. (OIDR at 32-33 (quoting Resp. Corr. Brief at 23 n.6) (citing Resp. App. Tab 77 at p. 2086)).

V. THE COMMISSION PROPERLY DETERMINED THE PERIOD OF DAMAGES BASED UPON RESPONDENT’S BRIEFING AND EVIDENCE

Respondent also contends that the period of damages for its violations of the Shipping Act should end in March of 2014 because it allegedly began to collect Access Fees from some limousine companies accessing the Cruise Terminal in April of that year. (Petition at 13). As an initial matter, the only cited-to evidence pertaining to Access Fees collected in April of 2014 by Respondent was plainly attributed to access by *busses*, not limousines. (See *id.* at 12; see also Compl. App. 001831 (BOT_017336) (expressly stating: “APRIL 2014 8 TRIPS @ \$50.00 (BUSES)”). Moreover, the Commission relied on Respondent’s own briefing and evidence, which informs that following nearly six years of not charging limousines Access Fees, “the Wharves resolved to enforce access rates on limousines after replacing the person at the entrance gate in August of 2014.” (Resp. Corr. Brief at 23 n.6) (citing Resp. App. Tab 77 at p. 2086)). By Respondent’s own admission, it did not require limousines to pay Access Fees until August 2014. Accordingly, the Commission’s determination of the period of damages is correct and supported by Respondent’s own briefing and evidence.

VI. THE ESTABLISHED STANDARD FOR COMPLAINANTS’ REPARATIONS

First, Respondent’s argument that the Commission applied the incorrect legal standard in determining reparations is not a valid basis for reconsideration under Rule 261. Errors of law are not a ground for reconsideration under Rule 261. See *Non-Vessel-Operating Common Carrier Service Arrangements*, 30 S.R.R. 592, 593 (2005) (“Both petitions contend that the Commission reached an erroneous legal conclusion. As the text of Rule 261 makes clear, however, this is not an acceptable ground for seeking reconsideration.”).

Moreover, Respondent did not object to the ALJ's analysis in the Initial Decision on Remand regarding the proper calculation of reparations for Respondent's violations of section 41106(2) of the Shipping Act that arose from charging Complainants Access Fees but not charging limousines Access Fees, and so has waived the issue.

In the IDR, the ALJ stated that "[i]f it were determined that the Port violated section 41106(2) by charging Complainants for access but not charging taxicabs and limousines ... Complainants' damages would be all of the access fees they paid to the Port." (IDR at 66 (citations and quotations omitted)). Respondent's first argument in seeking to bypass its failure to object to the ALJ's determination on the measure of reparations is that the ALJ was simply making a "what if" statement. (Petition at 14). What the ALJ actually stated, however, is that "if it were determined that the Port violated section 41106(2)" then the outlined determination of reparations would apply. (IDR at 66). And indeed, it does. Thereafter, in the OADR, it was determined that Respondent did violate section 41106(2). (*See, e.g.*, OADR at 40). Therefore, the conditions of the ALJ's determination being met, the appropriate measure of damages is that which was set forth in the IDR and unobjected to by Respondent.

Regarding its decision to not object to the determination on the measure of damages contained in the IDR, Respondent contends that it did not file exceptions to the ALJ's determination for calculating reparations in this matter because it was a statement, "not a holding," and provided "nothing to which Respondents could object." (Petition at 14). However, even a cursory review of Rule 227, 46 C.F.R. § 502.227, would show that the contents of a decision need not reach the level of a "holding" to be the subject of exceptions. *See* 46 C.F.R. § 502.227. In fact, the statute clearly provides that "any party may file a memorandum excepting to any conclusions, findings, **or statements** contained in such decisions." 46 C.F.R. § 502.227 (emphasis

added). As identified by the Commission in the OADR, Respondent had the opportunity to object to the measure of reparations, but chose to waive that opportunity. (See OADR at 39; see also Rule 227, 46 C.F.R. § 502.227 (a party has 22 days in which to file exceptions to the contents of a decision by the ALJ)).

Accordingly, not only is this issue raised in Respondent's Petition improper, it lacks merit.

VII. COMPLAINANTS DID NOT REOPEN EVIDENCE

The Commission having found Complainants are due reparations, pursuant to FMC Rules 251 and 252, remanded this matter to the ALJ, where Complainants would be provided the opportunity to prove the amount of Access Fees paid in July 2014. 46 C.F.R. §§ 502.251 and 502.252 (When reparations are due but the amount "cannot be ascertained upon the record," the complainant may be given opportunity to prove the amount.).

As an initial matter, on May 24, 2021, Respondent and Complainants filed a Joint Status Report in this proceeding. Therein all parties expressly represented that "the parties do not believe additional discovery is necessary on the issue of reparations." (Dkt. No. 079, Joint Status Report at pg. 1). Accordingly, Respondent's objection to the Commission's OADR pertaining to granting Complainants "opportunity to prove the amount of access fees they paid [in July 2014]" is moot.

Nevertheless, out of an abundance of caution, Complainants will address Respondent's unsupported argument. The sole issue alive on remand is the calculation of reparations. (OADR at 40). The Commission's OADR permits Complainants to offer proof for the just determination of those reparations arising from Respondent's violations of the Shipping Act. Nevertheless, Respondent feels the OADR to be "unfair," and wishes to turn the clock back on this proceeding to September of 2014 to re-litigate the entire matter. (See Petition at 15). Respondent alleges that "the Commission is allowing a one-sided reopening of discovery and argument to assist

Complainants.” (*Id.*). The basis of this allegation is found in the OADR, where the Commission states that “[o]n remand, EZ Cruise and 81st Dolphin would have the opportunity to prove the amount of access fees they paid [in the month of July 2014].” (OADR at 39-40). Without support, Respondent argues that “[i]f the Commission is going to allow this, then the Commission, on remand, should allow for discovery, fact finding and briefing on the issue of limousines, legitimate transportation factors that apply and distinguish limousines from Complainants’ vehicles.” (Petition at 15-16).

In addition to the Commission’s order being properly within the Commission’s authority and in compliance with the governing Rules, the relief now sought by Respondent has been thoroughly litigated in this proceeding already, and the opportunity for additional briefing later waived by Respondent. As addressed above, in August of 2018 when provided the opportunity by the ALJ’s Order to Identify Necessary Supplemental Briefing to file a statement identifying remaining issues on remand and whether additional briefing was necessary, Complainants identified, among other issues: (1) whether Respondents had justified by legitimate transportation factors, the differential treatment afforded under the Tariff by Respondents to Complainants versus limousines; and (2) whether Respondents met their burden of showing legitimate transportation factors justifying their disparate treatment of Complainants by charging them the full access fees prescribed by the Tariff while, from 2007 through 2014, giving preferential treatment to other commercial passenger vehicles (including limousines, taxicabs, etc.) that were permitted the same access and use of the Cruise Terminal as Complainants, but without having to pay the charges required by the Tariff. (Complainants’ Statement at 7-9). Complainants further stated that no additional briefing was required on the remaining issues. (*Id.* at 10). In response to Complainants’

Statement, and in compliance with the ALJ's OINSB, Respondent filed its statement, providing in part as follows:

“While Respondent does not necessarily agree with Complainants’ characterization of the underlying facts and circumstances, Respondent agrees that no additional briefing is required on the ‘transportation factors’ issue referenced in Complainants’ Statement.”

(Respondent’s Statement at 1). Now, Respondent informs the Commission that it has changed its mind. (Petition at 15-16).

Respondent’s objection and argument on this point are moot. Moreover, the Commission’s OADR was made within its authority. Furthermore, the issues Respondent seeks to re-open have been thoroughly addressed by all parties, the ALJ, FMC, and the D.C. Circuit, and Respondent has long-since and on multiple occasions affirmatively waived the opportunity to re-address them.

**VIII. THE ISSUE OF “OFFSETS” IS RESERVED FOR THE UNITED STATES
DISTRICT COURT FOR THE SOUTHERN DISTRICT OF TEXAS —
GALVESTON DIVISION**

On June 16, 2014, Complainants initiated this proceeding against Respondents by filing a Verified Complaint (the “Complaint”) with the Commission, alleging the Board’s Tariff No. 6, Item 111 relating to Access Fees (the “Tariff”) charged to them as “Off Port Parking Users” violated, among other provisions, 46 U.S.C. § 41106(2). (Complaint).

On June 26, 2014, Complainants filed a Complaint against Respondents in the United States District Court for the Southern District of Texas—Galveston Division, Cause No. 3:14-cv-00206 (the “Federal Complaint”) alleging Respondents’ actions in connection with the Board’s Tariff No. 6, Item 111 relating to Access Fees: (1) violated the Commerce Clause of the United States Constitution, (2) constituted a Regulatory Taking without Just Compensation, (3) Violated the Right to Travel under the United States Constitution, and (4) Constituted a Unlawful Tax or

User Fee. In addition, Complainants sought a declaratory and injunctive relief pursuant to 46 U.S.C. § 41306 and FED R. CIV. P. 65(a) and (b).

On July 21, 2014 Respondents filed their Answer to the Verified Complaint (“Respondents’ Answer”) denying Complainants’ claims in full, and raising affirmative defenses to same. (Respondents’ Answer). On August 1, 2014, Respondents filed their Answer to the Federal Complaint denying Complainants’ claims in full.

On July 15, 2014, Complainants filed a Motion for Temporary Restraining Order and to Show Cause Why Preliminary Injunction Should Not Issue (“TRO Motion”) with regard to enforcement of Tariff, and on August 5, 2014, Complainants and Respondents jointly submitted an Agreed Interim Order (“Agreed Order”) concerning those matters set out in the TRO Motion.

Under the Agreed Order:

- (a) Complainants were directed to pay the Board of Trustees monthly Access Fees pursuant to the Tariff in effect prior to the May 19, 2014 on or before the first Monday of each calendar month . . . pending final decision on the merits or resolution of [Complainants’] claims in the FMC Proceeding and [the Federal Proceeding], in the following amounts (based upon \$8.00 per space):
 - a. Santa Fe Discount Cruise Parking, Inc. \$3,304.00
 - b. Lighthouse Parking, Inc. \$1,840.00
 - c. Sylvia Robledo d/b/a 81st Dolphin Parking \$1,080.00
- (b) Complainants were directed to pay to the Clerk of the Court [in the Federal Court] . . . Monthly Deposits . . . pending final decision on the merits or resolution of [Complainants’] claims in the FMC Proceeding and [the Federal Proceeding], in the following amounts (based upon \$20.88 per space):
 - a. Santa Fe Discount Cruise Parking, Inc. \$8,623.44
 - b. Lighthouse Parking, Inc. \$4,802.40
 - c. Sylvia Robledo d/b/a 81st Dolphin Parking \$2,818.80

During pendency of the Agreed Order, the Board has been expressly proscribed from delivering invoices for Access Fees to Complainants.

On September 22, 2014, the Board changed the Tariff to charge Complainants \$20 per trip for Access Fees, and same became effective October 1, 2014. (Amended Complaint). Accordingly, from October 1, 2014 until the present date, Complainants have incurred Access Fees at the rate of \$20 per trip which will need to be deducted from the amounts: (a) paid the Board, and (b) into the Court registry. However, since the Board was not transmitting invoices to Complainants after entry of the Agreed Order, each side has been responsible for conducting its own record keeping for purposes of daily and monthly trip counts, and an audit and reconciliation will need to be conducted by a tribunal upon final resolution of this matter and the claims pending in Federal Court (which have been abated pending resolution of this proceeding).

Respondent does not even mention the monthly amounts that have already been paid to the Board by Complainants after inception of the Agreed Order, and the current amounts paid into the Federal Court registry that Respondent has represented are incorrect as to all three Complainants. As of the date of Respondent's filing of the Petition, Complainants have paid the following amounts to the Board and into the Federal Court Registry:

	Wharves Board	Federal Court Registry	Total
EZ Cruise	\$218,064	\$577,770	\$795,834
Dolphin	\$71,280	\$188,859	\$260,139
Lighthouse	\$123,252	\$326,563	\$449,815

While Complainants agree that discovery will need to be conducted on the outstanding issue of offsets and credits, and a determination made with respect to outstanding amounts owed to the Board, such undertaking should not be made part of the review by the ALJ. The audit and reconciliation of outstanding Access Fees owed to the Board is subject to the jurisdiction of the Federal District Court (where the Agreed Order was entered) and finality of claims still pending before that tribunal, and should thus be determined there.

**IX. RESPONDENT’S ARGUMENTS REGARDING REFUSAL TO ABIDE BY
UNIVERSAL CHARGES ARE IMPROPER UNDER RULE 261(a)(3)**

Respondent’s allegations contained in Section IX of the Petition amount to nothing more than repetitious arguments that should not be received. Petitions for Reconsideration which merely elaborate or repeat arguments made prior to the decision or order will not be received. Rule 261(a)(3). Therein, Respondent provides statements of the factual and procedural background that are virtually identical to those previously contained in former briefing in support of concluding that “This further demonstrates the equitable issue that mitigate against a finding against Respondent.” (Petition at 19). Respondent’s arguments that it acted reasonably, or that Complainants acted unreasonably, should be disregarded as the same, repeated arguments elaborating on its same facts previously made at other stages in these proceedings.⁴ The Commission has rejected these arguments, finding the Board violated § 41106(2).

X. GPFC’S STATUS AS A PREVAILING PARTY IS MOOT

The OADR is not one by which “rights or obligations have been determined,” or from which “legal consequences will flow” as it applies to Respondent GPFC. In fact, the only mention of Respondent GPFC within the OADR is as follows:

“Although this Order generally refers to Respondents in the plural, the ALJ dismissed the claims against Respondent Galveston Port Facilities Corporation. I.D.R. at 35. Neither party challenges that dismissal, which the Commission affirms.”

(OADR at 14).

⁴ To the extent Respondent raises new arguments Section IX through citations to the Affidavit of Mark Murchison (Resp. App. 002082) and reference to a portion of Judge Guthrie’s Initial Order, same are proscribed by Rule 261(a)(3) because Respondent certainly had ample opportunity to comment on such matters in its former briefing.

However, the Commission's affirmation of GPFC's dismissal within the OADR does not constitute a "finding" subject for reconsideration under Rule 261. The ALJ dismissed GPFC with prejudice in the Initial Decision issued on December 4, 2015. (IDR at 1, 35). Complainants did not file exceptions to GPFC's dismissal no later than twenty-two (22) days after service of the ID, and Complainants are not aware that any Commissioner requested to review that determination within thirty (30) days of issuance of the ID. *See* 46 C.F.R. § 502.304(g). Accordingly, GPFC's dismissal became final on January 4, 2016.

Moreover, Respondent GPFC does not seek "reconsideration" of its prior dismissal from this action in the Petition. GPFC instead requests for the Commission to formally find that it was a "prevailing party" and "on remand the issue of its attorney's fees must be addressed." (Petition at 19). However, Commission Rule 254(c)(1) states that "[i]n order to recover attorney fees, the prevailing party must file a petition within thirty (30) days after a decision becomes final. For purposes of this section, a decision is considered final when the time for seeking judicial review has expired or when a court appeal has terminated." 46 C.F.R. § 502.254(c)(1). Against this backdrop, GPFC was required to file its petition for attorney's fees within thirty (30) days of January 4, 2016, when its dismissal became final. GPFC did not file such a petition or application within the prescribed timeframe and, therefore, its ability to seek attorney's fees is time-barred. Accordingly, GPFC's request to be formally found a "prevailing party" in the Petition is improper under Rule 261, untimely and moot.

XI. RESPONDENTS ARE NOT ENTITLED TO ATTORNEY'S FEES FROM LIGHTHOUSE AS A "PREVAILING PARTY"

While the OADR is one by which "rights or obligations have been determined" and one from which "legal consequences will flow" with respect to Lighthouse, Respondent's Petition does not seek reconsideration of any finding with regard to Lighthouse. Respondent seeks to be

formally “held to be the prevailing party against Lighthouse Parking and be allowed to recover attorney fees incurred as a result of defending against Lighthouse Parking’s claims.” (Petition at 20). However, the Board’s claim for attorney’s fees is inextricably intertwined with defending against the same claims asserted by all three (3) Complainants, and the Board cannot logically become the “prevailing party” as one – but not all. The term “‘prevailing party’ . . . is a ‘legal term of art,’ and is ‘interpreted . . . consistently’” and the premise is “‘the material alteration of the **legal relationship of the parties** in a manner which Congress sought to promote in the fee statute.’” Final Rule, 81 Fed. Reg. 10,508 at 10,511-12 (Mar. 1, 2016) (emphasis). Accordingly, determination of the “prevailing party” requires an assessment of the parties’ legal relationship.

In the OADR, the Commission found “the [OADR] became final as to Lighthouse when it declined to appeal.” OADR at 38 (citing *Nat’l Ass’n of Broadcasters v. FCC*, 554 F.2d 1118, 1124 (D.C. Cir. 1976) (“It is the generally accepted rule in civil cases that where less than all of the several co-parties appeal from an adverse judgment, a reversal as to the parties appealing does not necessitate or justify a reversal as to the parties not appealing.”)). While this finding is dispositive as to Lighthouse’s claims against the Board, it is not as to the Board’s claim for attorney’s fees against all three (3) Complainants jointly.⁵ As recognized in the *Nat’l Ass’n of Broadcasters* decision (relied upon by the Commission in support of non-reversal as to Lighthouse), “[t]his rule is subject to the exception that where a proper decision of the case as to the appealing parties is dependent upon the judgment as to the parties not appealing, **the judgment must be reversed as a whole.**” 554 F.2d 1118, 1124 n. 16 (D.C. Cir. 1976) (emphasis added). Accordingly, at least with regard to the issue of the Board’s status as a “prevailing party” to be eligible to recover for

⁵ Respondent filed its First Amended Answer on Dec. 5, 2014, wherein it affirmatively sought to recover attorney’s fees from all Complainants.

attorney's fees against Complainants, the Commission's reversal of the former determination (that the Board was the "prevailing party") is now the proper decision of the case with respect to the Board's claim for attorney's fees against all Complainants – including Lighthouse.⁶

XII. THE COMMISSION SHOULD NOT STAY THE REMAND ON ISSUES OF REPARATIONS AND ATTORNEY'S FEES; RESPONDENTS' HAVE NOT PROVIDED A VALID BASIS FOR RECONSIDERATION UNDER RULE 261

Respondent seeks a stay of remand pending a ruling by the Commission on its Petition pursuant to Rule 261. The Commission has already decided Respondent's liability by finding the Board violated § 41106(2) in the OADR. As stated above, most of the factual arguments were made previously, or could have been made, by Respondent the Board. To a large extent, the Board appears to essentially be arguing that, although it violated the Shipping Act, it didn't violate it bad enough to be found liable. The Board should not prevail on its Petition.

Moreover, as set forth in Section I of this brief, Respondent has not met the requirements of Rule 261(a) for filing the Petition, because the Commission's OADR was not final. Accordingly, Respondent's Petition is subject to the summary rejection provisions of Rule 261 and, therefore, Respondents' request for entry of a stay on reparations and attorney's fees should be denied.

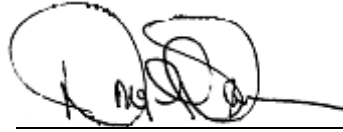
CONCLUSION

For the foregoing reasons, Respondents' Petition for Reconsideration should be denied for procedural and substantive grounds, and its request to stay the remand proceedings should likewise be denied.

⁶ Alternatively, even if the Board were to be considered a "prevailing party" as to Lighthouse, the Board would "also need to be found *entitled* to attorney fees." See *Logfret, Inc. v. Kirsha, B.V., et al.*, Docket No. 18-10, 2 F.M.C. 2d at 38-40 (ALJ, Feb. 20, 2020) (emphasis in original).

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that I electronically filed this document on this **1st day of June, 2021**, and that a true and correct copy of the foregoing was served on all counsel of record **via** certified mail – return receipt requested and email, as indicated below:

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**ATTORNEYS FOR RESPONDENTS
THE BOARD OF TRUSTEES OF THE GALVESTON WHARVES
AND GALVESTON PORT FACILITIES CORPORATION**



Douglas T. Gilman

VERIFICATION

Pursuant to Rules 6 and 262 of the Federal Maritime Commission's Rules of Practice and Procedure, I, Douglas T. Gilman, do hereby declare and verify under the penalty of perjury under the laws of the United States of America that the foregoing Reply of Complainants to Respondents Petition for Reconsideration and Motion for Stay of Proceedings is true and correct.

A handwritten signature in black ink, appearing to read 'Douglas T. Gilman', is written over a horizontal line.

Douglas T. Gilman, Legal Counsel to Complainants Santa Fe Discount Cruise Parking, Inc. d/b/a EZ Cruise Parking; Sylvia Robledo d/b/a 81st Dolphin Parking; and Lighthouse Parking, Inc.